

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

AMARA KONTEH,

Filed: _____

Plaintiff,

Index No. _____

-against-

**Plaintiff designates BRONX
County as the place of trial.**

**THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT AND POLICE OFFICER SHANNA L.
JONES,**

SUMMONS

**The basis of venue is
Location of incident**

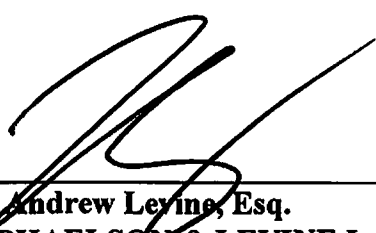
Defendants.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
September 21, 2022


By: **Andrew Levine, Esq.**
RAPHAELSON & LEVINE LAW FIRM, P.C.
Attorneys for Plaintiff
Pennsylvania Building
14 Penn Plaza, Suite 1718
(212) 268-3222

DEFENDANTS:

NEW YORK CITY POLICE DEPARTMENT
C/O COMPTROLLER OF THE CITY NEW YORK
1 CENTRE STREET
NEW YORK, NY 10007

THE CITY OF NEW YORK - OFFICE OF THE COMPTROLLER
BUREAU OF LAW & ADJUSTMENT,
1 CENTRE STREET, ROOM 1225
NEW YORK, NY 10007

SHANNA L. JONES
L LEFRACK CITY PLAZA
QUEENS, NY 11368

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

AMARA KONTEH,

Plaintiff,

INDEX NO.

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT AND POLICE OFFICER SHANNA L. JONES,,

Defendants.

Plaintiff, by its attorneys, RAPHAELSON & LEVINE LAW FIRM, P.C., as and for its
Verified Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, **AMARA KONTEH**, at all times herein mentioned was and still is a
resident of the County of Bronx, City and State of NY.

2. The defendant, **THE CITY OF NEW YORK**, at all times herein mentioned was
and still is a resident of the County of New York, State of New York.

3. Prior to the commencement of this action, a Notice of Claim and Supplemental
Notice of Claim were served on behalf of plaintiff, upon **THE CITY OF NEW YORK** in
accordance with Section 50-e of the General Municipal Law.

4. Within ninety (90) days of the occurrence herein, a Notice of Claim in writing was
served on behalf of plaintiff, **AMARA KONTEH**, upon **THE CITY OF NEW YORK** in
accordance with Section 50-e of the General Municipal Law.

5. The defendant, **NEW YORK CITY POLICE DEPARTMENT**, at all times
herein mentioned was and still is a resident of the County of New York, State of New York.

6. Prior to the commencement of this action, a Notice of Claim and a Supplemental
Notice of Claim in writing were served on behalf of plaintiff, **AMARA KONTEH** upon **NEW**

YORK CITY POLICE DEPARMENT in accordance with Section 50-e of the General Municipal Law.

7. Within ninety (90) days of the occurrence herein, a Notice of Claim in writing was served on behalf of plaintiff, **AMARA KONTEH**, upon **NEW YORK CITY POLICE DEPARTMENT** in accordance with Section 50-e of the General Municipal Law.

8. The defendant, **SHANNA L. JONES**, at all times herein mentioned was and still is a resident of the County of Queens, State of New York.

9. Prior to the commencement of this action, a Notice of Claim and Supplemental Notice of Claim in writing were served on behalf of plaintiff, upon **SHANNA L. JONES** in accordance with Section 50-e of the General Municipal Law.

10. Within ninety (90) days of the occurrence herein, a Notice of Claim in writing was served on behalf of plaintiff, **AMARA KONTEH**, upon **SHANNA L. JONES** in accordance with Section 50-e of the General Municipal Law.

11. Although more than thirty (30) days have elapsed since service of such notice of claim, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND SHANNA L. JONES** neglected and has refused to pay said claim or adjust same.

12. A hearing pursuant to General Municipal Law 50-h has been held.

13. This action is commenced within one (1) year and ninety (90) days from October 12, 2021, the date the accident as herein set forth occurred.

14. On or about October 12, 2021, plaintiff **AMARA KONTEH** was a lawful bicyclist on Webster Avenue in the vicinity of the property known as 3016 Webster Avenue, in the County of Bronx, City and State of New York.

15. On or about October 12, 2021, and at all times hereinafter mentioned, Webster

Avenue in the vicinity of the property known as 3016 Webster Avenue, in the County of Bronx, City and State of New York, was and still is a public roadway and/or thoroughfare.

16. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** was the owner of a certain motor vehicle bearing New York State license plate number 496519.

17. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** was the registered owner of a certain motor vehicle bearing New York State license plate number 496519.

18. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** was the titled owner of a certain motor vehicle bearing New York State license plate number 496519.

19. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** was the lessee of a certain motor vehicle bearing New York State license plate number 496519.

20. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** was the lessor of a certain motor vehicle bearing New York State license plate number 496519.

21. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** managed the aforesaid motor vehicle bearing New York State license plate number 496519.

22. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** maintained the aforesaid motor vehicle bearing New York State license plate number 496519.

23. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** controlled the aforesaid motor vehicle bearing New York State license plate number 496519.

24. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** repaired the aforesaid motor vehicle bearing New York State license plate number 496519.

25. On or about October 12, 2021, defendant **THE CITY OF NEW YORK** inspected the aforesaid motor vehicle bearing New York State license plate number 496519.

26. On or about October 12, 2021, defendant **NEW YORK CITY POLICE**

DEPARTMENT was the owner of a certain motor vehicle bearing New York State license plate number 496519.

27. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** was the registered owner of a certain motor vehicle bearing New York State license plate number 496519.

28. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** was the titled owner of a certain motor vehicle bearing New York State license plate number 496519.

29. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** was the lessee of a certain motor vehicle bearing New York State license plate number 496519.

30. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** was the lessor of a certain motor vehicle bearing New York State license plate number 496519.

31. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** managed the aforesaid motor vehicle bearing New York State license plate number 496519.

32. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** maintained the aforesaid motor vehicle bearing New York State license plate number 496519.

33. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** controlled the aforesaid motor vehicle bearing New York State license plate number 496519.

34. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** repaired the aforesaid motor vehicle bearing New York State license plate number 496519.

35. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** was not engaged in emergency operation at the time of the collision herein.

36. On or about October 12, 2021, defendant **NEW YORK CITY POLICE DEPARTMENT** inspected the aforesaid motor vehicle bearing New York State license plate number 496519.

37. On or about October 12, 2021, defendant **SHANNA L. JONES** was the owner of a certain motor vehicle bearing New York State license plate number 496519.

38. On or about October 12, 2021, defendant **SHANNA L. JONES** was the registered owner of a certain motor vehicle bearing New York State license plate number 496519.

39. On or about October 12, 2021, defendant **SHANNA L. JONES** was the titled owner of a certain motor vehicle bearing New York State license plate number 496519.

40. On or about October 12, 2021, defendant **SHANNA L. JONES** was the lessee of a certain motor vehicle bearing New York State license plate number 496519.

41. On or about October 12, 2021, defendant **SHANNA L. JONES** was the lessor of a certain motor vehicle bearing New York State license plate number 496519.

42. On or about October 12, 2021, defendant **SHANNA L. JONES** managed the aforesaid motor vehicle bearing New York State license plate number 496519.

43. On or about October 12, 2021, defendant **SHANNA L. JONES** maintained the aforesaid motor vehicle bearing New York State license plate number 496519.

44. On or about October 12, 2021, defendant **SHANNA L. JONES** controlled the

aforesaid motor vehicle bearing New York State license plate number 496519.

45. On or about October 12, 2021, defendant **SHANNA L. JONES** repaired the aforesaid motor vehicle bearing New York State license plate number 496519.

46. On or about October 12, 2021, defendant **SHANNA L. JONES** inspected the aforesaid motor vehicle bearing New York State license plate number 496519.

47. On or about October 12, 2021, the aforesaid motor vehicle, bearing New York State license plate number 496519, was being operated by defendant **SHANNA L. JONES**.

48. On or about October 12, 2021, defendant **SHANNA L. JONES** was the operator of the aforesaid motor vehicle bearing New York State license plate number 469519 with the permission of its owner, defendant **THE CITY OF NEW YORK**.

49. On or about October 12, 2021, defendant **SHANNA L. JONES** was the operator of the aforesaid motor vehicle bearing New York State license plate number 469519 with the permission of its owner, defendant **NEW YORK CITY POLICE DEPARTMENT**.

50. On or about October 12, 2021, defendant **SHANNA L. JONES** was the operator of the aforesaid motor vehicle bearing New York State license plate number 469519 with the knowledge of its owner, defendant **THE CITY OF NEW YORK**.

51. On or about October 12, 2021, defendant **SHANNA L. JONES** was the operator of the aforesaid motor vehicle bearing New York State license plate number 469519 with the consent of its owner, defendant **THE CITY OF NEW YORK**.

52. On or about October 12, 2021, defendant **SHANNA L. JONES** was the operator of the aforesaid motor vehicle bearing New York State license plate number 469519 with the consent of its owner, defendant **NEW YORK CITY POLICE DEPARTMENT**.

53. On or about October 12, 2021, defendant **SHANNA L. JONES** was the operator

of the aforesaid motor vehicle bearing New York State license plate number 469519 within the scope of her employment with its owner, defendant **THE CITY OF NEW YORK**.

54. On or about October 12, 2021, defendant **SHANNA L. JONES** was the operator of the aforesaid motor vehicle bearing New York State license plate number 469519 within the scope of her employment with its owner, defendant **NEW YORK CITY POLICE DEPARTMENT**.

55. On or about October 12, 2021, defendant police officer **SHANNA L. JONES** was engaged in routine patrol of the aforesaid motor vehicle bearing New York State license plate number 469519 within the scope of her employment with its owner, defendant **NEW YORK CITY POLICE DEPARTMENT**.

56. On or about October 12, 2021, at approximately 9:00 AM, the aforesaid vehicle was being operated over and along the aforementioned roadway/thoroughfare.

57. On or about October 12, 2021, at approximately 9:00 AM, plaintiff was operating a bicycle over and along the aforementioned roadway/thoroughfare.

58. On or about October 12, 2021, at approximately 9:00 AM, the vehicle operated by the defendant **SHANNA L JONES** came into contact with the bicycle operated by the plaintiff **AMARA KONTEH**.

59. On or about October 12, 2021, at approximately 9:00 AM, the vehicle operated by the defendant **SHANNA L. JONES** came into violent contact with the bicycle operated by the plaintiff **AMARA KONTEH**.

60. Solely as a result of the defendants' negligence, carelessness and recklessness the plaintiff was caused to suffer severe and serious personal injuries to neck, back, right knee, right ankle the full nature and extent of which are not presently known; pain and suffering; inability to

perform or attend to normal and routine daily activities; medical and hospital expenses incurred, and care required in the future.

61. The aforesaid occurrence was caused by the negligence of the defendants, without any culpable conduct on the part of the plaintiff.

Defendants, their agents, servants, contractors and/or employees, specifically defendant **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND SHANNA L. JONES**, their agents, servants, and/or employees, were further negligent and reckless in the ownership, operation, inspection, supervision, maintenance, control and repair of the aforesaid vehicle. Defendants were further negligent, careless and reckless in that their vehicle was operated at an excessive, unlawful and dangerous rate of speed and/or at a greater rate of speed than care and caution would permit under the circumstances and conditions then and there existing; in failing to have said vehicle under reasonable and proper control; in negligently, carelessly and recklessly causing and permitting said vehicle to be operated in a manner contrary to and in violation of statutes, ordinances and departmental regulations in such cases made and provided; in negligently, carelessly and recklessly omitting and failing to provide and/or permit timely use of adequate and efficient, steering devices and/or steering mechanisms; in failing and omitting to keep and maintain a proper lookout and be reasonably alert; in misjudging distance; in failing and omitting to comply with the rules and regulations relating to the roadway and intersections and traffic control signals; in disregarding a red traffic control; in disregarding a traffic control device; in improperly entering an intersection; in failing to yield right of way to plaintiff; in failing to pay attention to traffic conditions and traffic including bicyclists such as plaintiff; in failing and omitting to take proper and suitable precautions to avoid said accident and in injuring the plaintiff; in improperly and unsafely entering the roadway; in failing to signal its intentions to enter the

roadway; in pressing the gas at an inappropriate time and while plaintiff was in the way of same, or in the immediate vicinity as to create a danger and in otherwise operating the aforesaid vehicle negligently, carelessly and recklessly under the circumstances.

Defendants, **THE CITY OF NEW YORK NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER SHANNA L. JONES**, were further negligent, careless and reckless in the hiring, employment, supervision and control of their employees including **SHANNA L. JONES**; in causing, allowing and permitting individuals without adequate training and/or experience to operate the vehicle; in hiring inexperienced persons to operate the vehicle; and in further failing and omitting to provide proper and adequate supervision and control over their agents, servants, contractees and/or employees.

Following the occurrence herein **THE CITY OF NEW YORK NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER SHANNA L. JONES**, its agents, servants, officers and/or employees, drafted and filed a report regarding this collision which misstated the facts and wrongly and falsely attributed statements to the claimant in effort to cover liability for this crash.

59. As a result of the foregoing, the plaintiff sustained serious personal injuries as defined in Section 5102(d) of the Insurance Law of the State of New York, and/or economic loss greater than basic economic loss as defined in Section 5102(a) of the Insurance Law of the State of New York.

60. This action falls within one or more of the exceptions set forth in Section 1602 of

the Civil Practice Law and Rules.

61. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiff demands judgment awarding damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: New York, New York
September 21, 2022



By: Andrew Levine, Esq.
RAPHAELSON & LEVINE LAW FIRM, P.C.
Attorneys for Plaintiff
Pennsylvania Building
14 Penn Plaza, Suite 1718
New York, New York 10122
(212) 268-3222

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

AMARA KONTEH,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT AND POLICE OFFICER SHANNA L.
JONES,,**

Defendants.

Index No.

**ATTORNEY'S
VERIFICATION**

Andrew Levine, Esq., an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

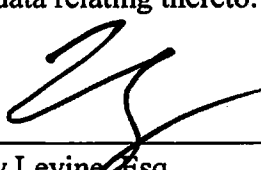
I am an associate of the RAPHAELSON & LEVINE LAW FIRM, P.C., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because plaintiff does not maintain its principal place of business within the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
September 21, 2022



Andrew Levine Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

AMARA KONTEH,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT AND POLICE OFFICER SHANNA L.
JONES,,

Defendants.

SUMMONS and VERIFIED COMPLAINT

RAPHAELSON & LEVINE LAW FIRM, P.C.

Attorneys for Plaintiff
Pennsylvania Building
14 Penn Plaza, Suite 1718
New York, New York 10122
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